

Pier and Harbour Order (Minehead) Confirmation Act, 1952

15 & 16 GEO. 6 & 1 ELIZ. 2 Ch. xxix

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CHAPTER xxix

An Act to confirm a Provisional Order made by the Minister of Transport under the General Pier and Harbour Act 1861 relating to Minehead.
[1st August 1952.]

WHEREAS a Provisional Order made by the Minister of Transport under the General Pier and Harbour Act 1861 is not of any validity or force whatever until confirmation thereof by Act of Parliament:

And whereas it is expedient that the Provisional Order made by the Minister of Transport under the said Act as set out in the schedule to this Act be confirmed by Act of Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order as set out in the schedule to this Act shall be Confirmation and the same is hereby confirmed and all the provisions thereof of Order in in manner and form as they are set out in the said schedule shall ^{schedule.} from and after the passing of this Act have full validity and force.

2. This Act may be cited as the Pier and Harbour Order Short title. (Minehead) Confirmation Act 1952.

SCHEDULE MINEHEAD HARBOUR

Provisional Order to provide for the vesting in the urban district council of Minehead of the Minehead Harbour to confer powers on the Council with reference thereto and the maintenance management and improvement thereof and for other purposes.

PRELIMINARY

- Short title. 1. This Order may be cited as the Minehead Harbour Order 1952.
- Commencement of Order. 2. This Order shall come into operation upon the day when the Act confirming this Order is passed and that day is in this Order referred to as the commencement of this Order.
- Interpretation. 3. In this Order unless the context otherwise requires words and expressions to which by the enactments incorporated therewith or applied thereto respectively meanings are assigned have in this Order the same meanings and:—
- “The Act of 1823” means the Act 4 George 4. c. cxiii being an Act for more effectually improving and keeping in repair the pier and harbour of Minehead in the county of Somerset;
 - “Authorised rates” means the rates which the Council are for the time being authorised to levy demand and recover in pursuance of this Order or any order made under section 25 (Revision of rates) of this Order;
 - “The Council” means the urban district council of Minehead;
 - “The general rate fund” means the general rate fund of the urban district of Minehead;
 - “The harbour” means the harbour jetty and the harbour works and the land buildings works plant property and conveniences connected therewith or any part thereof as the case may be;
 - “The Harbours Clauses Act 1847” means the Harbours Docks and Piers Clauses Act 1847;
 - “The harbour jetty” means—
 - (a) the pier and the head and other works which were vested in the Lord or Lady Lords or Ladies for the time being of the Manor of Minehead by the Act of 1823;
 - (b) the groyne or breakwater situate above low-water mark adjoining and to the west of the said pier and running in a northerly direction therefrom;
- which (together with the right to charge levy and recover all tolls rates duties and other charges authorised to be taken by statute or order in respect of the harbour jetty) were conveyed to the Council by Geoffrey Fownes Luttrell being the undertaker for the purposes of the Order of 1895 on the fifth day of May one thousand nine hundred and fifty-one with the consent of the Minister given under section 13 (Power to sell or lease pier and works or tolls and rates) of the Order of 1895;

“The harbour works” means—

(a) that part of the bed of the sea above low-water mark which forms the bed of the harbour and extends round the extremity of the harbour jetty in a westerly direction to the breakwater;

(b) the slip leading from Quay Street to the harbour bed and a sea wall;

which (together with the rights and privileges enjoyed by the Lord of the Manor of Minehead by virtue of the Act of 1823) were leased to the Council by the said Geoffrey Fownes Luttrell on the fourth day of April one thousand nine hundred and fifty-one for the term of nine hundred and ninety-nine years from the twenty-fifth day of March one thousand nine hundred and fifty-one under the lease set forth in the First Schedule to this Order;

“The Minister” means the Minister of Transport;

“The Order of 1895” means the Minehead Pier and Harbour Order 1895 which was scheduled to and confirmed by the Pier and Harbour Orders Confirmation (No. 1) Act 1895;

“Seaplane” includes a flying boat and any other aircraft designed to manœuvre on the water;

“The undertaking” means and includes as the case may require the harbour or the entire undertaking of the Council in connection with the harbour;

“Vessel” includes a seaplane on the surface of the water;

“The works” means and includes the piers quays roads buildings and works and all conveniences connected with the harbour or constructed purchased or otherwise acquired by the Council under this Order.

UNDERTAKERS AND INCORPORATION OF ACTS

4. The Council shall be the undertakers for carrying this Order into execution. Undertakers.

5.—(1) The Lands Clauses Acts except so much thereof as relates to the purchase and taking of lands otherwise than by agreement and to the entry upon lands by the promoters of the undertaking and except sections 127 to 131 of the Lands Clauses Consolidation Act 1845 are hereby incorporated with this Order. Incorporation of Lands Clauses Acts.

(2) For the purposes of the incorporation of the said Acts the expression “the special Act” in those Acts shall mean this Order.

6.—(1) In the application to this Order of the Harbours Clauses Act 1847 the expression “the special Act” shall mean this Order and the word “vessel” shall include a seaplane on the surface of the water: Application of Harbours Clauses Act 1847.

Provided that nothing in the Harbours Clauses Act 1847 or this Order shall in any circumstances require or authorise the harbour-master or other officer to require the dismantling of a seaplane or any part thereof or the making of any alteration whatever of the structure or equipment of a seaplane.

(2) Sections 6 to 13 16 to 19 24 25 26 and 84 to 87 of the Harbours Clauses Act 1847 shall not be incorporated with this Order.

VESTING OF HARBOUR IN THE COUNCIL

Vesting of
harbour in
Council.

7.—(1) Subject to the provisions of this Order and to the terms and conditions of—

(a) a conveyance made on the fifth day of May one thousand nine hundred and fifty-one under section 13 (Power to sell or lease pier and works or tolls and rates) of the Order of 1895 between Geoffrey Fownes Luttrell of the one part and the Council of the other part ;

(b) a lease for the term of nine hundred and ninety-nine years from the twenty-fifth day of March one thousand nine hundred and fifty-one made on the fourth day of April one thousand nine hundred and fifty-one between the same parties as set out in the First Schedule to this Order ;

the undertaking shall be vested in and may be maintained by the Council.

(2) The lease as set out in the First Schedule to this Order is hereby confirmed and made binding on the parties thereto and the same may and shall be carried into effect accordingly.

(3) The harbour shall be known and described as “ the Minehead Harbour ”.

Partial repeal of
Act of 1823 and
Order of 1895.

8.—(1) The provisions of the Act of 1823 except the following sections shall be repealed :—

Section I (The pier to remain vested for ever in the Lord of the Manor who is authorised to collect and receive all rates and dues) ;

Section III (Bonds covenants &c. under former Acts to be good) ;

Section IV (Books under former Acts to be evidence) ;

Section XXXIV (General saving) ;

and the said sections shall be read and have effect as if the Council were therein referred to in lieu of the Lord or Lady Lords or Ladies for the time being of the Manor of Minehead.

(2) The Order of 1895 except so far as it relates to the pier and landing-place described in paragraph (a) of section 7 (Description of works authorised) thereof and except section 19 (Certain fishing vessels under stress of weather exempt from rates) thereof shall be repealed.

LANDS

Power to take
lands by
agreement.

9. Subject to the provisions of this Order the Council may by agreement purchase and hold for the purposes of this Order any lands in addition to those vested in the Council under and in pursuance of this Order not exceeding in the whole twenty acres but with respect to such additional lands nothing in this Order or in the Acts incorporated therewith shall exempt the Council from any indictment action or other proceedings for nuisance in the event of any nuisance being caused or permitted by them thereon.

Grant of
easements by
persons under
disability.

10.—(1) Any person empowered by the Lands Clauses Acts to sell and convey or release lands may if he thinks fit subject to the provisions of those Acts grant to the Council any easement or right

required for the purposes of this Order in over or affecting any such lands (not being an easement or right of water in which some person other than the grantor has an interest).

(2) The provisions of the said Acts with respect to lands and rentcharges so far as they are applicable shall extend and apply to any such grant and to any such easement or right as aforesaid.

11.—(1) The Council may—

(a) retain and hold and use for such time as they think fit any land or interest in land acquired by them under this Order ;

Retention and disposal of lands.

(b) sell lease exchange or otherwise dispose of any such land or interest no longer required for the purpose of the undertaking in such manner and for such consideration and on such terms and conditions as they think fit (whether in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of payment in any other form) ;

(c) sell exchange or dispose of any rents reserved on the sale lease exchange or other disposition of any such land or interest ;

(d) make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition ;

(e) on any such exchange pay or receive money for equality of exchange :

Provided that the Council shall not without the consent of the Minister sell lease exchange or otherwise dispose of any such land or any interest therein at a price or rent or for a consideration of a value less than the current market value of the land or interest but a purchaser or lessee shall not be concerned to inquire whether the consent of the Minister is necessary or has been obtained.

(2) Nothing in this section shall release the Council or any person purchasing or acquiring any land or interest in land from them under this section from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which the land or interest has been conveyed or leased to or otherwise acquired by the Council or any persons from or through whom the Council have derived title to it.

12. Capital money received by the Council in respect of a transaction under the last preceding section of this Order shall be applied in such manner as the Minister of Housing and Local Government may approve in or towards the extinguishing of any loan raised by the Council for the purposes of this Order or otherwise for any purpose for which capital money may properly be applied.

Proceeds of sale of lands to be treated as capital.

LIMITS

13.—(1) The limits within which the Council shall have authority and within which the powers of the harbour-master may be exercised

Limits of harbour.

shall comprise the works and an area below high-water mark bounded—

- (a) on the west by the western side of the groyne which runs in a northerly direction from the north side of the harbour jetty by a straight line drawn in continuation of the western side of the said groyne to low-water mark by the north-western side of the harbour jetty and by the sea wall between the western extremity of the harbour jetty and the slip leading from Quay Street to the harbour bed ;
- (b) on the south-west by the sea wall from its commencement at the southern end of the slip leading from Quay Street to the harbour bed to a point one hundred and sixteen yards or thereabouts to the south-east thereof ;
- (c) on the south-east by an imaginary straight line commencing at the point last described and running due north-east to low-water mark ; and
- (d) on the north by low-water mark between the northern extremity of the boundary referred to in paragraph (a) and the north-eastern extremity of the imaginary line referred to in paragraph (c) ;

which limits are in this Order referred to as “the limits of the harbour”.

(2) The limits within which the power to levy rates may be exercised (in this Order referred to as “the rating limits”) shall comprise the harbour and the works.

WORKS AND POWERS

Power to
construct
maintain and
improve works.

14.—(1) Subject to the provisions of this Order the Council may upon any lands within the limits of the harbour maintain alter improve and extend the harbour and any works thereof and construct maintain alter and improve embankments walls footways approaches steps landing-places piers quays jetties slips wharves groynes sea defences buoys moorings cranes lights beacons roads sewers drains watercourses gas and water pipes apparatus for electric light and power warehouses offices sheds and other works and conveniences which may be found necessary for the accommodation of vessels and traffic and for the protection of the harbour and may also from time to time lay down and maintain rails tramways sidings and turntables on and along the piers quays and other harbour works of the Council.

(2) No line of rails or tramway constructed under the powers of this Order shall be used for the public conveyance of passengers unless and until the same have been inspected and certified by the Minister to be fit for such traffic.

(3) Any electric light and power or other apparatus constructed and maintained under this Order shall be so constructed used and maintained as to prevent any interference with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.

15. Any person who wilfully obstructs any person acting under the authority of the Council in setting out the lines of the works or who pulls up or removes any poles or stakes driven into the ground for the purpose of such setting out shall for every such offence be liable to a penalty not exceeding five pounds.

Penalty for obstructing works.

16. The Council may construct and maintain on the harbour jetty or other parts of the works and may furnish and equip fishing-platforms pavilions saloons assembly concert lecture waiting refreshment reading and other rooms automatic machines bicycle-stands band-stands shops bazaars kiosks aquaria lavatories baths and sanitary and other conveniences and may make such reasonable charges as they may determine for the use of such conveniences and for admission to such buildings or places as aforesaid.

Power to erect pavilions and other buildings.

17.—(1) The Council may deepen dredge scour and excavate the harbour as they may consider necessary and may deepen dredge scour and excavate any portion of the foreshore and bed of the sea to the extent necessary to secure a sufficient waterway and approach to the harbour for vessels using the same.

Power to dredge and sell materials.

(2) All sand mud and other materials dredged up or removed shall be the property of the Council and they may sell or otherwise dispose of or remove or deposit the same as they think fit.

(3) All money arising from any sale or other disposition of sand mud and other materials under this section after payment of the expenses connected therewith shall be applied in the same manner as the revenue from the harbour is to be applied.

(4) (a) If in exercising the powers conferred upon them by this section the Council damage any county road as defined by section 29 of the Local Government Act 1929 or any retaining wall or embankment which supports any such road the Council shall compensate the county council of the administrative county of Somerset (in this subsection referred to as "the county council") for the cost of making good such damage and shall indemnify the county council from and against all claims or demands arising out of or in connection with such damage.

(b) Any dispute as to the amount of compensation to be paid under this subsection shall be determined by an arbitrator to be agreed upon between the county council and the Council or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1950 shall apply to such reference.

(5) The powers of the Council under this section shall be exercisable subject to the provisions of section 50 (Crown rights) of this Order and in particular and without prejudice to that general limitation any consent given to the exercise of such powers by the Commissioners of Crown Lands on behalf of Her Majesty may be given subject to such restrictions and conditions including the payment by the Council to the Commissioners of Crown Lands of royalties rents or sums of money in respect of materials raised from any place below high-water mark and sold by the Council under

this section or in respect of any place below high-water mark upon which materials may be deposited as may be fixed by the Commissioners of Crown Lands:

Provided that no materials raised under the provisions of this section shall be deposited in any place below high-water mark of ordinary spring tides otherwise than in such a position and under such restrictions and regulations as may be fixed by the Minister.

Power to
purchase
dredgers etc.

18. The Council may provide purchase take on lease hire and use such steam or other dredgers eroders engines lighters or other vessels machinery and apparatus as they may think necessary for effecting the purposes of this Order and may let the same on hire for such sums and upon and subject to such terms and conditions as they may think fit or may sell and dispose of the same. All sums received in respect of any such letting on hire shall be deemed to form part of the revenue of the undertaking and all moneys realised by any such sale shall be applied towards carrying into effect any of the purposes of this Order to which capital is properly applicable.

RATES

Power to
levy rates.

19. The Council may within the rating limits subject and according to the provisions of this Order levy and demand for the use of the works and the conveniences connected therewith and subject to the provisions of the Civil Aviation Act 1949 in respect of seaplanes entering or using the harbour such reasonable rates as may from time to time be approved by the Minister and in respect of all other vessels persons and goods of every description and for services described in the Second Schedule to this Order any rates not exceeding those specified in that schedule and may receive and recover payment accordingly.

Power to vary
exemptions and
compound for
rates.

20. The Council may confer vary or extinguish exemptions from and compound with any person with respect to the payment of rates or charges authorised by this Order but so that (except as expressly provided by the lease set out in the First Schedule to this Order) no preference be in any case given to any person over any other person using the harbour or the works under the like circumstances and that anything done under this section shall not prejudice the other provisions of this Order.

Rates for
services and
accommodation
not otherwise
provided for.

21. The Council may (so far as the rates specified in the Second Schedule to this Order do not extend) demand and recover such reasonable rates or other consideration as they may determine for the use of any warehouses sheds buildings yards weighing machines mooring posts cranes buoys works and conveniences belonging to or provided by the Council or in respect of any services rendered by them in connection with the harbour.

Master of
fishing vessel to
report take
of fish.

22.—(1) The master or owner of any vessel (not being a pleasure boat) with a take or cargo of fish shall on the arrival of the vessel within the limits of the harbour forthwith furnish to the collector of rates a true and accurate statement of his take or cargo of fish and the name of every person obtaining delivery thereof.

(2) If the master or owner of a vessel fails to comply with this section he shall for each offence be liable to a penalty not exceeding ten pounds.

23. The harbour-master may prevent the removal or sailing from within the limits of the harbour of any vessel in respect of which or of the goods imported or exported therein any rates are payable until evidence has been produced to him of the payment of those rates to the collector and in the case of a vessel with a take or cargo of fish until the master or owner of the vessel has given in the account of his take or cargo of fish required by this Order. Harbour-master may prevent sailing of vessels.

24. All persons going to or returning from any lifeboat or using any apparatus for saving life and being persons either belonging to the crew of the lifeboat or to the coastguard or being persons for the time being actually employed in saving life or in exercising or using the lifeboat or the apparatus for saving life and all persons brought ashore from any vessel in distress shall at all times have free ingress passage and egress to along and from the harbour. Exemption of lifeboat crew.

25.—(1) If it is represented by application in writing to the Minister— Revision of rates.

(a) by any chamber of commerce or shipping or any representative body of traders or shipowners ; or

(b) by any person who in the opinion of the Minister has a substantial interest in the trade of the harbour and is a proper person to make an application ; or

(c) by the Council ;

that under the circumstances then existing the authorised rates should be revised in whole or in part the Minister if he thinks fit may make an order revising all or any of the authorised rates referred to in the application and may fix the date as from which such order shall take effect and thenceforth such order shall remain in force until the same expires or is revoked or modified by a further order of the Minister made in pursuance of this section.

(2) An application made to the Minister under subsection (1) of this section shall be accompanied by such information and particulars as the Minister may consider relevant certified in such manner as he may require.

(3) Where upon an application under subsection (1) of this section for an increase or a decrease of the authorised rates or any of them an order has been made or the Minister has decided not to make an order no further application for an increase or a decrease as the case may be of any of the rates to which the application related shall be made within twelve months from the date of such order or decision as the case may be.

(4) Before making an order under subsection (1) of this section the Minister shall consult with such bodies or persons as aforesaid as appear to him to be appropriate including the Council where they are not the applicants and for the purpose of ascertaining such bodies or persons may require public notice of the application to be given and where an objection to an application is made by the Council or by any such body or person as aforesaid and is not withdrawn the Minister unless it appears to him that the objection is of a trivial nature shall cause an inquiry to be held in reference to the application.

(5) Subject to the proviso to this subsection the Minister shall not by an order under subsection (1) of this section make any such revision of the authorised rates as in his opinion would so far as can be estimated be likely to result in the annual revenue of the Council being insufficient or more than sufficient to enable the Council with efficient management of the undertaking to make adequate provision for paying all proper expenses of and connected with the working management and maintenance of the undertaking including interest on loan capital (regard being had by him to any capital which the Council may reasonably be expected to expend) making good depreciation providing for any contributions which the Council may reasonably and properly carry to any reserve fund contingency fund or sinking fund and meeting all other costs charges and expenses (if any) properly chargeable to revenue:

Provided that in any case where the Minister is satisfied that there are special circumstances affecting the undertaking taking into account its financial condition during such period preceding the date on which an application is made under subsection (1) of this section as the Minister considers to be appropriate the Minister may revise the authorised rates in such manner as he thinks just and reasonable with due allowance for such special circumstances notwithstanding that such revision is likely to result in the revenue of the Council being insufficient to enable the Council to make adequate provision for all of the matters referred to in the foregoing provisions of this subsection.

(6) The provisions of section 36 (Inquiries by Minister) of this Order shall apply to inquiries which the Minister may cause to be held under this section.

(7) The power of the Minister to make an order under subsection (1) of this section shall be exercisable by statutory instrument.

POWERS OF SALE AND LEASING

Power to sell
undertaking.

26.—(1) The Council may with the previous consent in writing and upon such terms conditions and restrictions as may be approved by the Minister sell the undertaking and the purchaser to the extent authorised by his conveyance and as respects that part of the undertaking which consists of the harbour works subject to the terms and conditions of the lease set forth in the First Schedule to this Order shall have and may exercise all or any of the powers conferred upon the Council by this Order or which the Council have or might exercise under this Order and shall be subject to all the liabilities and obligations to which the Council are subject and shall perform all the duties of the Council under this Order.

(2) The Council shall within one month after the date of any conveyance or of any assignment of the said lease made under this section deposit a certified copy thereof at the Ministry of Transport and shall upon failure to do so be liable to a penalty not exceeding twenty pounds.

Power to lease
undertaking or
rates.

27.—(1) The Council may with the previous consent in writing of and upon such terms conditions and restrictions and for such period as may be approved by the Minister lease to any company corporation or person (a) the undertaking or (b) the right to collect and retain the authorised rates.

(2) As from the commencement of any lease made under the last preceding subsection the lessee during the continuance of and to the extent provided in his lease shall have and may exercise all or any of the powers conferred upon the Council by this Order which the Council have or might exercise under this Order and shall be subject to all the liabilities and obligations to which the Council are subject and shall perform all the duties of the Council under this Order.

(3) No lease made under subsection (1) of this section shall be assignable without the previous consent in writing of the Minister and the provisions of this Order with respect to such lease or to the lessee shall apply to any such assignment or to the assignee respectively.

(4) The Council shall within one month after the date of any lease made under this section deposit a certified copy thereof at the Ministry of Transport and shall upon failure to do so be liable to a penalty not exceeding twenty pounds.

(5) No lease made under this section shall be made in consideration or part consideration of any fine premium or other capital sum.

(6) Nothing in this section shall exempt the Council from their obligation to keep and render accounts and as from the date of any lease made under this section all the provisions of the Acts incorporated with this Order and of this Order as to the keeping delivery and audit of accounts shall apply to and be binding upon as well the lessee as the Council and all moneys received by the Council under or in respect of any such lease shall be deemed to be moneys levied by virtue of and income received under this Order.

(7) In this section "lease" as respects that part of the undertaking which consists of the harbour works includes a sub-lease and "lessee" includes sub-lessee.

28. The Council may let for hire or lease for any term not exceeding seven years any pavilions rooms shops baths sheds warehouses or other buildings separately from any other part of the undertaking to any company corporation or person upon such terms pecuniary or otherwise and under such restrictions and conditions as they may determine. Power to lease pavilions etc.

FINANCIAL

29.—(1) The Council shall have power in addition and without prejudice to their powers of borrowing under the Local Government Act 1933 to borrow without the consent of any sanctioning authority the sum requisite for the payment of the costs charges and expenses of this Order and they shall repay any sum so borrowed within such period as they may determine not exceeding five years from the commencement of this Order. Power to borrow.

(2) The provisions of Part IX of the Local Government Act 1933 so far as they are not inconsistent with this Order shall extend and apply to the borrowing of money under this section and the

money so borrowed as if it were borrowed under the said Part IX and the period fixed by this section for the repayment of any money so borrowed shall as respects that money be the fixed period for the purpose of the said Part IX.

(3) In the application of Part IX of the Local Government Act 1933 to the borrowing of moneys for the purposes of this Order the Minister shall be the sanctioning authority.

(4) It shall not be lawful to exercise the powers of borrowing conferred by this section otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945.

Receipts and
expenses.

30.—(1) Notwithstanding anything contained in any Act or Order all moneys received by the Council in connection with the undertaking whether on capital or revenue account including (but without prejudice to the generality of this provision)—

(a) all money received on account of the revenue of the undertaking ;

(b) interest and other annual proceeds received on the investments forming part of any fund accumulated for the redemption of debt or as a reserve renewals repairs contingency or other similar fund in connection with the undertaking including any interest payable to any such fund in pursuance of section 8 of the Local Authorities Loans Act 1945 ;

shall be carried to and form part of the general rate fund and all payments and expenses made and incurred by the Council in respect of the undertaking or in carrying into execution the powers and provisions of this Order (including interest on moneys borrowed by the Council and all sums required by law to be paid or transferred or which the Council may determine to pay or transfer to any such fund as is referred to in paragraph (b) of this subsection) shall be paid or transferred out of the general rate fund :

Provided that an amount equivalent to the interest and other annual proceeds as aforesaid shall (subject in the case of any of the said funds to any prescribed limit on the amount thereof) be credited in the accounts to the fund on the investments of which the same is received.

(2) Nothing in this section shall authorise the Council to apply capital money to any purpose other than a purpose to which capital money is properly applicable.

Accounts of
undertaking.

31.—(1) The Council shall keep separate accounts of the undertaking so as to distinguish capital from revenue and as regards revenue to show under a separate heading or division on the one side all receipts in respect of the undertaking (including the interest on any reserve fund which the Council may from time to time be authorised to set up when that fund amounts to the prescribed maximum) and on the other side all payments and expenses in respect of the undertaking such payments and expenses being divided so as also to show the amounts representing—

(a) the working and establishment expenses and cost of maintenance of the undertaking ;

- (b) the interest on moneys borrowed by the Council for the purposes of or connected with the undertaking or used for those purposes under any enactment ;
- (c) the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed or used as aforesaid ;
- (d) all other expenses (if any) of the undertaking properly chargeable to revenue ;
- (e) the amount (if any) paid to any reserve fund which the Council are from time to time authorised to maintain; and
- (f) any money expended on any of the purposes mentioned in section 32 (Application of revenue of undertaking) of this Order.

(2) The Council shall show in their accounts relating to the undertaking all items (including receipts and payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the undertaking.

(3) In all cases in which the Council keep separate accounts for separate purposes they shall so far as reasonably practicable apportion between those accounts or carry to any of them any receipts credits payments and liabilities which from time to time ought to be so apportioned or carried.

32.—(1) If in respect of any financial year the moneys received by the Council on account of the revenue of the undertaking (including the interest and other annual proceeds received by the Council in that year on the investments representing or forming part of any such fund as is referred to in paragraph (b) of subsection (1) of section 30 (Receipts and expenses) of this Order provided in connection with the undertaking) shall exceed the moneys expended or applied by the Council in respect of the undertaking for the several purposes mentioned in paragraphs (a) (b) (c) and (d) of subsection (1) of the last preceding section the Council may in respect of that year (if they think fit but subject to the provisions hereinafter contained) apply out of the general rate fund a sum not exceeding the amount of such excess to any of the following purposes:—

Application of
revenue of
undertaking.

- (a) in reduction of capital moneys borrowed for the purposes of the undertaking ;
- (b) in the renewal construction extension or improvement of any works and conveniences for the purposes of the undertaking or in payment of any expenses in respect of the undertaking which might otherwise have been defrayed out of capital moneys ;
- (c) in providing a reserve fund in respect of the undertaking by setting aside such an amount as they may from time to time think reasonable and (unless the amounts so set aside are applied in any other manner authorised by any enactment) investing the same in statutory securities until the fund so formed amounts to the maximum reserve fund from time to time prescribed by the Council.

(2) Any reserve fund provided under this section may be applied—

- (a) in making good to the general rate fund any deficiency at any time happening in the income of the Council from the undertaking ; or
- (b) in meeting any extraordinary claim or demand at any time arising against the Council in respect of the undertaking ; or
- (c) in or towards the payment of the cost of renewing improving or extending any works forming part of the undertaking or otherwise for the benefit thereof ;

and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

(3) Resort may be had to a reserve fund provided under this section although such fund may not at the time have reached or may have been reduced below the prescribed maximum.

(4) In this section “statutory security” means any security in which trustees are for the time being authorised by law to invest trust moneys and any mortgage bond debenture debenture stock or other security created by a local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rent-charges or securities transferable by delivery or any securities of the Council.

Annual account
to be sent to
Minister.

33. The Council shall within three months of the close of their financial year or such longer period as the Minister may allow send to the Minister a copy of the annual accounts of the undertaking.

BYELAWS

Byelaws.

34.—(1) The byelaws which may from time to time be made by the Council in exercise of the powers on that behalf conferred on them by section 83 of the Harbours Clauses Act 1847 may provide for the imposition of a penalty not exceeding five pounds for the breach or non-observance of any of the byelaws.

(2) As respects byelaws made under this Order the confirming authority for the purposes of section 250 of the Local Government Act 1933 shall be the Minister.

Appointment of
officers to
enforce byelaws
and regulations.

35. The Council may appoint officers for securing the observance of the byelaws and regulations made by the Council under this Order in respect of the harbour.

INQUIRIES

Inquiries by
Minister.

36. The Minister may cause to be held such inquiries as he may consider necessary in regard to the exercise of any powers or duties conferred or imposed upon him and the giving of any consent or approval or the making of any order or the confirmation of any byelaw under this Order and section 290 of the Local Government Act 1933 shall apply to such inquiries as if they were an inquiry held in pursuance of subsection (1) of that section.

LIFE-SAVING APPARATUS

37.—(1) The Council shall whenever required by the Minister provide at their own expense within the period specified by and to the satisfaction of the Minister a site near the harbour jetty and build on that site a house or other proper accommodation for a lifeboat rocket apparatus and other life-saving apparatus. Provision for life-saving apparatus.

(2) If the Council fail to comply with this section they shall be liable to a penalty not exceeding ten pounds for every month during which the failure continues.

38. The officers of the coastguard and all other persons for the time being actually employed in connection with the lifeboat or the apparatus for saving life may either permanently or temporarily without payment attach or cause to be attached to any part of the harbour jetty spars and other apparatus for saving life and may also either in course of using or of exercising the apparatus for saving life fire rockets over the harbour jetty. Life-saving apparatus may be attached to harbour jetty.

39. The Council shall at all times keep at convenient places on the harbour jetty and in obedience to any requirements which may be made by the Minister lifebuoys and lifelines in good order and fit and ready for use. Lifebuoys to be kept.

WRECKS

40.—(1) Whenever any vessel is sunk stranded or abandoned in any part of the harbour or in or near any approach thereto the Council may if they think fit cause the vessel or any part thereof to be raised removed blown up or destroyed. Removal of sunk stranded or abandoned vessels.

(2) The Council may cause any such vessel and the furniture and tackle and apparel thereof or any part thereof respectively which shall be raised or salvaged and also all or any part of the cargo goods chattels and effects which may be raised or salvaged from any such vessel to be sold in any such manner as they may think fit and out of the proceeds of sale may reimburse themselves for the expenses incurred by them under this section and also for any expenses incurred by them in marking buoying watching lighting or otherwise controlling the vessel and shall hold the surplus (if any) of the proceeds of the sale in trust for the persons entitled thereto:

Provided that the Council shall before selling any such cargo goods chattels or effects as aforesaid pay all duties and purchase tax payable to Her Majesty or in respect of the cargo goods chattels or effects to be sold and they may retain the amount of the duties and purchase tax so paid out of the proceeds arising from the sale of such cargo goods chattels or effects.

(3) If the proceeds of the sale are insufficient to reimburse the Council for the aforesaid expenses and duties and purchase tax the Council may recover the deficiency or in case of an appeal under subsection (4) of this section such sum as is awarded by the arbitrator to be payable in respect of the deficiency from the owner of any such vessel either summarily as a civil debt where the amount recoverable does not exceed twenty pounds or as a debt in any court of competent jurisdiction.

(4) If on demand being made under this section for payment of any deficiency the owner of the vessel is dissatisfied with the amount demanded he may within fourteen days after the receipt of the demand appeal to the Minister who shall appoint an arbitrator to determine and award whether any and (if so) what sum is payable in respect of the deficiency and the award of the arbitrator appointed by the Minister that no sum is payable or as to the sum payable as the case may be shall be conclusive and binding on both parties. The costs of the appeal and the award shall be in the absolute discretion of the arbitrator and he shall award and order how those costs are to be borne and paid and any costs so awarded and ordered to be paid by either party may be recovered by the other party in the same manner as the sum payable in respect of the deficiency is recoverable under subsection (3) of this section.

(5) The Council shall (except in any case which in their opinion is a case of emergency) before raising removing blowing up or destroying any vessel under the provisions of this section give to the owner of the vessel twenty-four hours' notice of their intention so to do and if within twelve hours after the expiration of such notice the owner gives to the Council notice in writing of his intention himself to raise and remove the vessel he shall be at liberty to do so in lieu of the Council:

Provided that if the owner gives any such notice as last aforesaid—

(a) he shall in raising or removing the vessel comply with any directions which may from time to time be given to him by or on behalf of the Council for the purpose of preventing interference with navigation ; and

(b) he shall forthwith after giving such notice commence and shall with all diligent dispatch proceed with and complete the raising or removal of the vessel ;

and if such raising or removal be not completed within seven days after the giving of such notice by the owner such notice shall be null and void and the Council shall be at liberty to cause the vessel to be raised removed blown up or destroyed in accordance with the provisions of this section as if the owner had not given such notice.

(6) The Council shall (except in any case which in their opinion is a case of emergency or when required by the owner to sell) before selling any vessel or any part thereof or any part of the cargo goods chattels and effects thereof under the provisions of this section give to the owner seven days' notice of their intention so to do.

(7) Any notice given by the Council pursuant to subsection (5) or subsection (6) of this section shall be given by delivering the same to the owner or by posting a prepaid letter addressed to the owner at the place in the United Kingdom where he carries on business or at his last known place of abode in the United Kingdom or if the owner or his place of business or abode is not known to the Council then by exhibiting such notice at the office of the Council for twenty-four hours in the case of a notice given under the said subsection (5) or for seven days in the case of a notice given under the said subsection (6).

15 & 16 GEO. 6
& 1 ELIZ. 2

*Pier and Harbour Order
(Minehead)
Confirmation Act, 1952*

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(8) In this and the following section the expression—

“owner” in relation to any vessel sunk stranded or abandoned as aforesaid means the owner of that vessel at the time of the sinking stranding or abandonment thereof;

“vessel” includes a seaplane and other aircraft.

(9) The powers conferred on the Council by this section shall be in addition to and not in derogation of any other powers exercisable by them for or with respect to the removal of wrecks.

(10) Except for the purpose of removing any obstruction to the harbour nothing in this section shall entitle the Council to remove any wreck (as defined by section 510 of the Merchant Shipping Act 1894) to the prejudice or in derogation of the rights with respect to such wreck of the receiver of wrecks under the provisions of Part IX of the Merchant Shipping Act 1894 and if the Council shall for any such purpose as aforesaid remove any such wreck they shall (without prejudice to the rights of sale conferred upon them by the foregoing provisions of this section) hold and dispose of the same or any such surplus of the proceeds of sale thereof as is referred to in subsection (2) of this section in accordance with such directions (if any) as may be given to them by the said receiver.

(11) For the removal of doubt it is expressly provided that nothing in this section shall apply to any vessel belonging to Her Majesty or held by any person on behalf of or for the benefit of the Crown nor shall any of the powers conferred by this section be exercised if by such exercise the Crown would become liable directly or indirectly otherwise than as an insurer or reinsurer under a contract of insurance or reinsurance for any expenses incurred by the Council except where such consent is given as is provided for in the next succeeding section of this Order and the vessel was not such a vessel as aforesaid at any such time as is mentioned in subsection (8) of this section.

41.—(1) The Council shall before taking possession of raising removing blowing up or destroying any vessel sunk stranded or abandoned under the powers conferred upon them by this Order or by any other enactment give to the Admiralty and to the Minister notice in writing of their intention so to do and if within fourteen days after the receipt of such notice the Admiralty or the Minister gives to the Council—

As to vessels in which Crown have an interest.

(a) a certificate that the vessel was sunk stranded or abandoned by a person acting on behalf of Her Majesty or otherwise by an officer or servant of the Crown acting in the course of his duty as such and that it is not in the national interest that the Council should take possession of the vessel or that the vessel should be raised removed or blown up or destroyed; or

(b) a notice that the exercise by the Council of the rights of recovery conferred by subsection (2) of the last preceding section of this Order would render the Crown liable directly or indirectly otherwise than as an insurer or reinsurer

under a contract of insurance or reinsurance for all or a substantial proportion of the expense incurred by the Council ;

the Council shall not without the consent in writing of the authority by whom the certificate was issued or the notice given take possession of raise remove blow up or destroy such vessel :

Provided that in any case which in their opinion is a case of emergency the Council may take possession of raise remove blow up or destroy any vessel without giving notice of their intention so to do to the Admiralty or to the Minister and in that event the Council shall not be entitled to recover from any person the expenses incurred by them in so doing if the effect of such recovery would be to render the Crown so liable.

(2) If the Council shall mark light watch buoy control or give warning to shipping of the presence of any vessel in respect of which the Admiralty or the Minister have refused their consent under subsection (1) of this section the Council shall not be entitled to recover the expenses of so doing from the owner of the vessel.

LIGHTS

Permanent
lights on works.

42.—(1) The Council shall at or near the outer extremity of the works below high-water mark of ordinary spring tides exhibit and keep burning every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Corporation of Trinity House Deptford Strond shall from time to time direct.

(2) If the Council fail to comply in any respect with the provisions of this section they shall be liable to a penalty not exceeding twenty pounds and in the case of a continuing offence to an additional penalty not exceeding two pounds for every day on which after conviction thereof they so fail.

Provision
against
danger to
navigation.

43.—(1) In case of injury to or destruction or decay of the works or any part thereof so far as the same shall be constructed on under or over any tidal waters or tidal lands below high-water mark of ordinary spring tides the Council shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Corporation of Trinity House Deptford Strond and shall apply to that corporation for directions as to the means to be taken.

(2) If the Council fail to comply in any respect with the provisions of this section they shall be liable to a penalty not exceeding ten pounds and in the case of a continuing offence to an additional penalty not exceeding one pound for every day during which they omit after conviction thereof so to apply or refuse or neglect to obey any direction given in reference to the means to be taken.

MISCELLANEOUS

Power to
advertise
harbour.

44. The Council may from time to time pay or contribute towards the cost of advertising by means of handbooks leaflets posters advertisements in newspapers or otherwise the harbour the tides tolls

depth of harbour and boat and other services connected with the undertaking and the facilities provided or available in or in connection with the harbour.

45. Notwithstanding anything in this Order any cables pipes or wires to be laid or placed under the powers of this Order by the Council or under or over any tidal waters or tidal lands below high water mark of ordinary spring tides shall be laid or placed at such depth under or such height over the tidal waters or tidal lands as the Minister may require.

Cables pipes or wires under or across tidal waters.

46. The Council shall have the appointment of meters and weighers within the limits of the harbour.

Meters and weighers.

47.—(1) All penalties and forfeitures recoverable under this Order or under any byelaw made in pursuance of section 83 of the Harbours Clauses Act 1847 may be recovered in a summary manner.

Recovery of penalties.

(2) Any costs or expenses recoverable as aforesaid may be recovered summarily as civil debts where the amount recoverable does not exceed twenty pounds.

48. Officers of the Ministry of Transport British sea-fishery officers and police officers acting in the execution of their duty shall at all times have free ingress passage and egress to along and from the harbour without payment.

Officers exempt from rates.

49. The Council shall within the limits of the harbour be a local lighthouse authority for the purposes of the Merchant Shipping Act 1894.

Local lighthouse authority.

50. Except as hereinafter expressly provided nothing in this Order affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Council to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to Her Majesty in right of Her Crown and under the management of the Commissioners of Crown Lands without the consent in writing of those Commissioners on behalf of Her Majesty first had and obtained for that purpose.

Crown rights.

51. Notwithstanding the provisions contained in the last preceding section of this Order or in any public statute Her Majesty and Her lessees for their respective interests may work any minerals belonging to Her Majesty in right of Her Crown under or adjacent to lands and works of the Council authorised to be taken or constructed by this Order but in the event of any such right being at any time intended to be exercised sections 77 to 85 (both inclusive) of the Railways Clauses Consolidation Act 1845 shall apply as if the same without amendment by subsequent enactment were in relation to such minerals incorporated in this Order and as if the Council were a railway company and the said lands and works were the railway and works of such railway company and as if the Commissioners of

Crown minerals.

Crown Lands were the owners of the minerals and so that any compensation payable by the Council to or for the benefit of Her Majesty as the owner of the minerals or payable to the Council by Her Majesty as such owner shall be payable to or by the Commissioners of Crown Lands as the case may be.

Works to be in
parish of
Minehead.

52. The works shall be deemed to be for all purposes within the parish and urban district of Minehead and in the county of Somerset.

Saving for town
and country
planning.

53. This Order shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Saving for Sea
Fish Industry
Act 1951.

54. This Order shall be deemed to be an enactment passed before the passing of the Sea Fish Industry Act 1951 for the purposes of section 21 (Fishery harbours) of that Act.

Costs of Order.

55. All costs charges and expenses of and incident to the preparing and obtaining of this Order and otherwise incurred in reference thereto as taxed by the proper officer shall be paid by the Council.

SCHEDULES

FIRST SCHEDULE.

THIS LEASE made the Fourth day of April One thousand nine hundred and fifty-one Between GEOFFREY FOWNES LUTTRELL of Dunster Castle in the County of Somerset Esquire (hereinafter called "the Lessor") of the one part and THE URBAN DISTRICT COUNCIL of the URBAN DISTRICT OF MINEHEAD in the said County of Somerset (hereinafter called "the Lessee") of the other part Witnesseth that in consideration of the rent and the Lessee's covenants hereinafter reserved and contained the Lessor doth hereby demise and lease unto the Lessee First All that part of the bed of the sea above low-water mark which forms the bed of the Minehead Harbour and extends round the extremity of the Old Pier or Jetty in a westerly direction to the Breakwater which runs in a northerly direction from the north side of the said Jetty And also the Slip leading from Quay Street to the Harbour bed and the Sea Wall between the points A & B on the plan annexed hereto all which premises are for the purpose of identification only delineated on the plan annexed hereto and thereon coloured pink And Secondly All those the rights and privileges now enjoyed by the Lessor by virtue of an Act of Parliament entitled "An Act for more effectually improving and keeping in repair the Pier and Harbour of Minehead in the County of Somerset" which received the Royal Assent on the Twenty-seventh day of June One thousand eight hundred and twenty-three and of the Minehead Pier and Harbour Order 1895 as Lord of the Manor of Minehead in respect of the Harbour but subject to the provisions of the said Act and Order And Thirdly full right and liberty for the Lessee during the continuance of the term hereby granted to deposit on the portion of the beach coloured blue on the said plan all shingle sand and mud dredged scoured or otherwise removed from the bed of the said Harbour by the Lessee or its Contractors and their respective servants and for this purpose to have during the said term a right of access with or without vehicles or vessels to the said portion of the beach coloured blue on the said plan Except and Reserving unto the Lessor his Franchise consisting of the right to unclaimed "Wreck of the Sea" and "Royal Fish" in respect of the property comprised in this Lease To Hold the same unto the Lessee from the Twenty-fifth day of March One thousand nine hundred and fifty-one for the term of Nine hundred and ninety-nine years thence next ensuing Yielding and Paying therefor yearly during the said term hereby granted the rent of Ten pounds to be paid without any deduction (except for Landlord's property tax) by equal quarterly payments on the Twenty-fifth day of March the Twenty-fourth day of June the Twenty-ninth day of September and the Twenty-fifth day of December in every year during the said term the first of such payments to become due on the Twenty-four day of June One thousand nine hundred and fifty-one And the Lessee hereby covenants with the Lessor in manner following (that is to say) That the Lessee will during the continuance of the term hereby granted pay the said yearly rent hereby reserved at the times and in the manner hereinbefore appointed without any deductions save as aforesaid And Also will from time

1ST SCH.
—cont.

to time and at all times during the said term pay and discharge all rates taxes duties charges assessments and outgoings whatsoever whether parliamentary parochial local or of any other description which now are or during the said term shall be assessed charged or imposed upon the said demised premises or the owner or occupier in respect thereof (the Landlord's property tax only excepted) And Also that the Lessee will at all times during the said term well and sufficiently repair support and keep in good and substantial condition and repair the said Slip and the Sea Wall between the points A & B on the said plan and also the Slip or breakwater situate at the South-west extremity of the portion of the shore coloured blue on the said plan and indicated on such plan by the letter "C" And Also will dredge scour cleanse and maintain the bed of the said Harbour in a fit and proper state for the accommodation of the sailing boats motor boats and other similar craft now accustomed to use the same And Also will permit the Lessor and the persons specified in the Schedule hereto now using the Harbour and Slip for small motor boats sailing boats and other similar craft to continue such use without payment of Harbour Dues or other charges to the intent that so far as regards the Lessor and his successors in title such right shall continue during the term hereby granted And Also will perform and observe all regulations from time to time made by the Ministry of Transport concerning the Harbour And Also will execute all such works as are or may under or in pursuance of any Act or Acts of Parliament already or hereafter to be passed be directed or required by any Government Department to be executed at any time during the said term upon or in respect of the said demised premises whether by the Landlord or tenant thereof And will permit the Lessor and all persons authorised by him once in every year in the day time on giving to the tenant or occupier for the time being of the said demised premises one week's notice in writing of his intention so to do to enter into and upon the said demised premises and proceed to examine the condition thereof And Also will not do or suffer any act or thing to be done which may be or grow to the annoyance damage or disturbance of the Lessor or of any of the owners or occupiers of any of the adjacent premises And Also will not construct or permit or suffer to be constructed on the premises hereby demised or any part or parts thereof any building or erection of any kind whatsoever without the consent in writing of the Lessor and (if such consent be granted) without all other necessary and proper consents or permissions which may be requisite by virtue of any Statute or otherwise And Also that the Lessee will within three calendar months next after any absolute transfer assignment or devolution of its interest under this present Lease in the said demised premises or any part thereof give notice in writing of such transfer assignment or devolution and of the name quality and place or places of abode of the transferee or transferees or assignee or assignees to the Lessor or to his solicitors and produce to him the instrument of such transfer assignment or devolution and pay to him a fee of Ten shillings and six pence for the registration of such notice Provided Always that if the rent hereby reserved or any part thereof shall be in arrear for Twenty-one days after the same shall

have become due (whether demanded or not) or in the event of the breach of any of the covenants or agreements on the part of the Lessee herein contained the Lessor may re-enter upon the said demised premises or any part thereof in the name of the whole and repossess the same as of his former estate Provided Always that it shall not be obligatory upon the Lessor his heirs or assigns on future sales or dealings to impose similar restrictions as to other parts of his Minehead Building Estate and if and whenever the Lessor his heirs or assigns shall convey or demise any land being a part but not the whole of the portion of such estate then remaining vested in him or them the right to enforce the said covenants in respect of the land so conveyed or demised shall not pass to the person or persons to whom the same shall be so conveyed or demised unless it shall be declared in the deed of conveyance or lease that it is intended to pass thereby Provided Also and it is hereby declared that the Lessee and its assigns shall not be entitled to any right of light or air which would in any manner diminish or interfere with the free and unrestricted user of any adjacent property now belonging to the Lessor either for building or any other purpose and the assurance hereinbefore contained shall not be deemed or construed to imply the grant of any such right And the Lessor doth hereby covenant with the Lessee in manner following that is to say That the Lessee paying the rent hereby reserved and performing and observing the several covenants conditions and agreements herein contained and on his part to be performed and observed shall and may peaceably and quietly hold and enjoy the said premises hereby demised during the term hereby granted without any lawful interruption or disturbance from or by the Lessor his heirs or assigns or any person or persons claiming under or in trust for him And the Lessor hereby grants consent to the Lessee to apply to the Minister of Transport for the granting of a Provisional Order in favour of the Lessee under the provisions of the General Pier and Harbour Act 1861 to operate during the term hereby granted And it is Declared that where the context allows the expression "the Lessor" and "the Lessee" used in these presents include respectively besides the said Geoffrey Fownes Luttrell his heirs and assigns and besides the Minehead Urban District Council its successors and assigns.

1st Sch.
—cont.

IN WITNESS whereof the Lessor has hereunto set his hand and seal and the Lessee has caused its Common Seal to be hereunto affixed the day and year first above written.

THE SCHEDULE above referred to.

Users of Minehead Harbour for Motor Boats and Rowing Boats.

1. Motor Boats.

A. Martin & W. H. Martin (Joint owners).
Capt. S. Rawle.
T. Rawle.
F. E. James.
H. Bushen.
F. Bryant.

1ST SCH.
—cont.

2. Rowing Boats.

W. H. Martin (2).

Capt. Rawle.

Edwin James.

H. Bushen.

SIGNED SEALED and DELIVERED by the
above-named Geoffrey Fownes Luttrell } G. F. LUTTRELL
in the presence of

W. F. MACKENZIE

Dunster

Somerset

Chartered Land Agent

THE COMMON SEAL of the Council was }
hereunto duly affixed in the presence of }

WILLIAM WEBBER

Chairman

N. BROWNING

Clerk

SECOND SCHEDULE

PART I

RATES ON VESSELS (OTHER THAN FISHING BOATS) ANCHORING OR
MOORING AT THE HARBOUR JETTY OR HARBOUR OR WITHIN THE
RATING LIMITS

	Per registered ton.
	£ s. d.
For every vessel under 50 tons	6
For every vessel of 50 tons and under 100 tons ...	4
For every vessel of 100 tons and upwards	2
All lighters from any vessel inside the rating limits shall be exempted from rates but if the vessel does not enter the rating limits every lighter shall pay for each trip	2
For every vessel remaining in the harbour after one month per registered ton per month or part thereof	1

15. & 16 GEO. 6
& 1 ELIZ. 2

*Pier and Harbour Order
(Minehead)
Confirmation Act, 1952*

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PART II

2ND SCH.
—cont.

RATES ON FISHING BOATS

	£	s.	d.
For every boat engaged in fishing as a composition in full of tonnage rates payable in advance—			
A. If propelled by sails or oars—			
(1) If under 15 tons register per quarter	1	0	0
(2) If 15 tons register or over per quarter	1	10	0
B. If propelled by steam or any other mechanical power other than sails or oars—			
(1) If under 50 tons register per quarter	3	0	0
(2) If 50 tons register or over per quarter	5	0	0
For every boat discharging fish of any description not paying the above composition dues—			
A. If propelled by sails or oars—			
(1) If under 15 tons register	2	0	
(2) If 15 tons register or over	4	0	
B. If propelled by steam or any other mechanical power other than sails or oars—			
(1) If under 50 tons register	4	0	
(2) If 50 tons register or over	8	0	
For every fishing boat of any description entering the harbour windbound or on passage	1	0	
For every fishing boat other than as above entering the harbour—			
A. If propelled by sails or oars—			
(1) If under 15 tons register per day ...	1	0	
(2) If 15 tons register or over per day	2	0	
B. If propelled by steam or any other mechanical power other than sails or oars—			
(1) If under 50 tons register	2	0	
(2) If over 50 tons register	4	0	

The above charges shall be payable in respect of any hull lying in the harbour for the purposes of being completed or engined and also for boats lying in the harbour waiting for or undergoing repairs.

In the event of any boat not paying the above composition dues remaining in the harbour more than 24 hours the above rates shall be payable for the first 24 hours and for each 24 hours or part thereof thereafter.

PART III

RATES FOR USE OF HARBOUR JETTY

	£	s.	d.
For every passenger or other person landing on the harbour jetty from or embarking from it on board of any ship vessel boat packet or passage boat for each time any sum not exceeding			3
	25		

2ND SCH.
—cont.

PART IV

RATES ON GOODS SHIPPED OR UNSHIPED WITHIN THE HARBOUR

	£	s.	d.
For fish of any description per cwt.	2	6	
For unworked stone per ton			6
For coal per ton			6
For sand per ton			6
For rubble ballast per ton			3
All kinds of timber or wood goods loaded or discharged by vessels using or entering the harbour per load of 50 cubic feet	1	0	
All other merchandise goods articles and things loaded or discharged by vessels using or entering the harbour per ton	1	0	

PART V

RATES FOR THE USE OF CRANES WEIGHING MACHINES AND SHEDS

(1) Cranes—	£	s.	d.
All goods or packages per ton or part of a ton	1	8	
(2) Weighing machines—			
For goods weighed for each ton or part of a ton			5
(3) Sheds—			
For each ton of 40 cubic feet of goods which shall remain in any shed forming part of the harbour works for a longer time than 24 hours the sum of 5d. and the sum of 3d. per ton of 40 cubic feet for each day during which such goods shall remain after the first 24 hours.			
For any portmanteau trunk parcel or other article of passengers' luggage for every day or part of day			2½

PART VI

RATES FOR SUPPLYING WATER

For each 100 gallons of water supplied to any vessel	1	0
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NOTES WITH REFERENCE TO THE FOREGOING SCHEDULE

1. All returned empties are exempted from payment of rates.
2. All goods landed and re-shipped on board the same or any other vessel shall be liable to one rate only provided that the goods were consigned in the first instance from the original forwarding point through to the destination to which they are re-shipped and no change of ownership of the goods has in the meantime taken place.
3. In charging the rates on goods weighed or measured the gross weight or measurement shall be taken. Fractional parts of any weight measure number or value shall be charged proportionately and the minimum charge for a single packet or thing shall be one penny.

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